

2. The proceeds from the sale shall be held in a segregated account for a period of six (6) months for the benefit of the property's owner.

3. Subsequent to the sale, notice concerning the holding of proceeds from the sale of the perishable property shall be published once a week for two (2) successive weeks in a newspaper of general circulation published in the city or town closest to the location where the property was recovered and, in the case of cities and towns in which no newspaper is published, by posting the notice in a conspicuous place at the city hall or police station.

4. If the proceeds are not claimed within six (6) months, after deducting and paying all expenses incurred in the recovery, storage, maintenance, and sale of the property, the net funds shall be deposited in the State Department of Agriculture Evidence and Law Enforcement Fund.

D. Six (6) months after the Department comes into possession of any other abandoned or stolen property, it may dispose of the property by public or private auction.

1. Notice of the time and place of sale shall first be given by publication of notice once a week for two (2) successive weeks in a newspaper of general circulation published in the city or town in question and, in the case of cities and towns in which no newspaper is published, by posting notice in a conspicuous place at the city hall or police station.

2. The first publication or posting of notice, as the case may be, shall be at least twenty (20) days before the sale.

3. Each article shall be sold separately and a notation in the permanent record shall be made of the amount received for each article of property.

4. The person making the sale shall have the right to reject any and all bids if the amount bid is unreasonably low and shall have the right to continue the sales from time to time.

5. After deducting and paying all expenses incurred in the taking up, storing, maintaining, and selling of the property, the balance, if any, shall be deposited in the State Department of Agriculture Evidence and Law Enforcement Fund.

Added by Laws 2015, c.288, § 1, eff. Nov. 1, 2015.

§2-2-15. Repealed by Laws 2000, c. 243, § 125, emerg. eff. May 24, 2000.

§2-2-16. Duties of district attorney or Attorney General.

A. When requested by the State Board of Agriculture it shall be the duty of a district attorney or the Attorney General to institute appropriate proceedings in the proper courts in a timely manner and to prosecute in the manner provided by law when violations of the following occur:

1. The Oklahoma Agricultural Code;
2. Any rule promulgated pursuant to the Oklahoma Agricultural Code; or

3. Any order, license, charter, registration, or permit issued pursuant to the Oklahoma Agricultural Code.

B. Any action to redress or restrain a violation of the Oklahoma Agricultural Code, any promulgated rule or any order, license, charter, registration, or permit issued pursuant to the Oklahoma Agricultural Code or to recover any administrative or civil penalty or other fine assessed pursuant to the Oklahoma Agricultural Code, may be brought by:

1. The district attorney of the appropriate district court of the State of Oklahoma;
2. The Attorney General on behalf of the State of Oklahoma; or
3. The Oklahoma Department of Agriculture, Food, and Forestry on behalf of the State of Oklahoma.

C. The court shall have jurisdiction to determine the action, and to grant the necessary or appropriate relief, including but not limited to mandatory or prohibitive injunctive relief, interim equitable relief, and punitive damages.

D. When requested by an authorized agent of the Board, it shall be the duty of every peace officer to assist in the detection and apprehension of all persons in violation of the Oklahoma Agricultural Code. Failure to perform this duty shall be cause for removal from office.

Added by Laws 1965, c. 236, § 4, emerg. eff. June 17, 1965. Amended by Laws 2000, c. 243, § 18, emerg. eff. May 24, 2000; Laws 2004, c. 60, § 2, emerg. eff. April 6, 2004.

§2-2-16.1. Livestock Offender Registry.

A. The Oklahoma Department of Agriculture, Food, and Forestry is authorized to create and maintain the Livestock Offender Registry. Access to the registry shall be provided to the public on the Department's website.

B. The Livestock Offender Registry shall contain all persons convicted of violating Section 1716 of Title 21 of the Oklahoma Statutes.

C. The Department may promulgate rules to implement the provisions of this section.

D. The Department is authorized to contract with a statewide livestock organization, as defined in Section 4-2 of Title 2 of the Oklahoma Statutes, to create and maintain the Livestock Offender Registry.

Added by Laws 2021, c. 141, § 1, eff. Nov. 1, 2021.

§2-2-17. Repealed by Laws 2000, c. 243, § 125, emerg. eff. May 24, 2000.

§2-2-17.1. False statements, etc. to Department - Rendering inaccurate any monitoring or measuring device - Penalties.

In addition to other penalties as may be imposed by law, it is a violation of the Oklahoma Agricultural Code for any person to knowingly make or provide any false statement, representation, or certification to the Oklahoma Department of Agriculture, Food, and Forestry or to knowingly render inaccurate any monitoring or measuring device or information thereof.

Added by Laws 2004, c. 60, § 3, emerg. eff. April 6, 2004.

§2-2-17A. Repealed by Laws 2000, c. 243, § 125, emerg. eff. May 24, 2000.

§2-2-18. Notice - Hearings - Penalties.

A. After notice and opportunity for a hearing in accordance with the Administrative Procedures Act, if the State Board of Agriculture finds any person in violation of the Oklahoma Agricultural Code or any rule promulgated or order issued pursuant thereto, the Board shall have the authority to assess an administrative penalty of not less than One Hundred Dollars (\$100.00) and not more than Ten Thousand Dollars (\$10,000.00) for each violation. Each animal, each action, or each day a violation continues may constitute a separate and distinct violation.

B. The Board may appoint administrative law judges to conduct the hearings. Hearings shall be held at a location within the region in which the alleged violator resides or the violation occurred, or the central offices of the State Board of Agriculture in Oklahoma City, Oklahoma.

C. Any person who fails to comply with the provisions of the Oklahoma Agricultural Code or rules promulgated by the Board shall be deemed guilty of a misdemeanor unless a violation of the Oklahoma Agricultural Code or rules promulgated thereto is specifically identified with a penalty or as a Class D3 felony offense in the individual articles of the Oklahoma Agricultural Code. Any person who violates the provisions of this subsection shall, upon conviction, be guilty of a Class D3 felony offense and shall be punished by imprisonment as provided for in subsections B through F of Section 20P of Title 21 of the Oklahoma Statutes.

D. Nothing in the Oklahoma Agricultural Code shall preclude the Board from seeking penalties in district court in the maximum amount allowed by law. The assessment of penalties in an administrative enforcement proceeding shall not prevent the subsequent assessment by a court of the maximum civil or criminal penalties for violations of the Oklahoma Agricultural Code and rules promulgated pursuant thereto.

E. Any person assessed an administrative or civil penalty may be required to pay, in addition to the penalty amount and interest thereon, attorney fees and costs associated with the collection of the penalties.

Added by Laws 1965, c. 236, § 6, emerg. eff. June 17, 1965. Amended by Laws 2000, c. 243, § 19, emerg. eff. May 24, 2000; Laws 2004, c. 60, § 4, emerg. eff. April 6, 2004; Laws 2025, c. 486, § 608, eff. Jan. 1, 2026.

§2-2-18.1. Pollution of air, land, or waters - Order to cease - Administrative penalty.

A. It shall be unlawful and a violation of the Oklahoma Agricultural Code for any person to cause pollution of any air, land or waters of the state by persons which are subject to the jurisdiction of the Oklahoma Department of Agriculture, Food, and Forestry pursuant to the Oklahoma Environmental Quality Act.

B. If the State Board of Agriculture finds that any of the air, land, or waters of the state which are subject to the jurisdiction of the Oklahoma Department of Agriculture, Food, and Forestry pursuant to the Oklahoma Environmental Quality Act have been or are being polluted, the Board shall make an order requiring that the pollution cease within a time period determined by the Department, or require a manner of treatment or of disposition of the waste or other polluting material as may in the judgment of the Board be necessary to prevent further pollution. In addition, the Board may assess an administrative penalty pursuant to Section 2-18 of this title. The person to whom the order is directed shall fully comply with the order of the Board and pay any fine and costs assessed.

C. 1. Manure shall not be defined as or be considered a hazardous substance or hazardous waste as those terms are defined by state law.

2. For purposes of this subsection, "manure" means any feces, urine, urea, or other excrement from livestock and shall also only include:

- a. associated nonhazardous bedding, compost, raw materials, or other nonhazardous materials commingled with the excrement,
- b. nonhazardous process water associated with the excrement or materials, or
- c. nonhazardous byproducts, constituents, or substances contained in or originating from the excrement, materials, or process water.

3. This subsection shall not be construed to affect or limit the applicability of any other provision of the Oklahoma Agricultural Code.

Added by Laws 2004, c. 60, § 5, emerg. eff. April 6, 2004. Amended by Laws 2007, c. 36, § 1, eff. Nov. 1, 2007.

§2-2-18.2. Oklahoma Department of Agriculture, Food, and Forestry - Official environmental regulatory agency.

The Oklahoma Department of Agriculture, Food, and Forestry is hereby designated as an official environmental regulatory agency for agricultural point source and nonpoint source pollution within its jurisdiction as specified in subsection D of Section 1-3-101 of Title 27A of the Oklahoma Statutes. The Department is hereby authorized and directed to obtain authorization from the Environmental Protection Agency (EPA) to administer any and all of the National Pollution Discharge Elimination System (NPDES) programs for agricultural point and nonpoint source discharges within its specified jurisdiction.

Added by Laws 1994, c. 289, § 2, emerg. eff. June 6, 1994. Amended by Laws 2004, c. 100, § 3, eff. July 1, 2004. Renumbered from § 1-3-103 of Title 27A by Laws 2004, c. 100, § 4, eff. July 1, 2004.

Amended by Laws 2006, c. 201, § 1, eff. Nov. 1, 2006.

NOTE: Editorially renumbered from § 18.2 of this title to provide consistency in numbering.

§2-2-18.3. Survey of agriculture producers - Water quality issues.

The Oklahoma Department of Agriculture, Food, and Forestry, in cooperation with the Oklahoma Conservation Commission and the Oklahoma State University Cooperative Extension Service shall determine if there is a willingness among agriculture producers in Oklahoma to institute a voluntary program designed to reduce the liability of landowners through the establishment of best management practices designed to address water quality issues throughout Oklahoma. The program shall be voluntary in nature and encompass all state and federal regulatory requirements.

Added by Laws 2009, c. 260, § 1, eff. July 1, 2009.

§2-2-19. Renumbered as § 14-81 of this title by Laws 2000, c. 243, § 126, emerg. eff. May 24, 2000.

§2-2-20. Renumbered as § 14-82 of this title by Laws 2000, c. 243, § 126, emerg. eff. May 24, 2000.

§2-2-21. Renumbered as § 14-83 of this title by Laws 2000, c. 243, § 126, emerg. eff. May 24, 2000.

§2-2-22. Repealed by Laws 1996, c. 138, § 8, emerg. eff. May 1, 1996.

§2-2-23. Renumbered as § 14-84 of this title by Laws 2000, c. 243, § 126, emerg. eff. May 24, 2000.